THE CROWN OFFICE OF THE SOVEREIGN MARGRAVIATE OF DANUVIUS

Promulgated: May 2026 |

Administrative Authority: The Margravial Chancery & High Council

Classification: Criminal Law & Penal Administration |

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INSTRUMENT XIII: THE CRIMINAL CODE & PENAL ADMINISTRATION ACT, 2026

(Enacted in the First Year of the Reign of Margrave Albrecht I)

BRIEF SUMMARY:

This statutory instrument formally establishes the criminal code, definitions of indictable and summary offences, rules of criminal procedure, and the penal administration framework within the Sovereign Margraviate of Danuvius. Operating as a core pillar of the legal system, this Act codifies common law offences, guarantees the presumption of innocence and due process, and sets lawful penalties under the authority of the Crown.

Instrument XIII: The Criminal Code & Penal Administration Act

(13 Albr. I)

AN ACT to codify the criminal law of the Sovereign Margraviate of Danuvius, to define offences against the person, property, public order, and the Crown, to regulate criminal procedure and penal administration, and for connected purposes.

BE IT ENACTED by Our Sovereign Hand, in this first year of Our Reign, with the advice and consent of the High Council of the Realm, as follows:

PART I: PRELIMINARY AND GENERAL PRINCIPLES OF CRIMINAL LIABILITY

1. Short Title and Citation

(1) This instrument may be cited as *The Criminal Code & Penal Administration Act, 2026*.

(2) In all formal legal records, this Act may alternatively be cited by regnal reference as *13 Albrecht I* (the thirteenth statute enacted in the reign of Margrave Albrecht I).

2. Fundamental Principles of Justice

(1) **Presumption of Innocence:** Every person charged with a criminal offence shall be presumed innocent until proven guilty according to law before a duly constituted court of the Realm.

(2) **Nullum crimen, nulla poena sine lege:** No act or omission shall constitute an offence unless designated as such by written statute or established common law doctrine recognised under Danubian law before its commission.

(3) **Mens Rea:** Criminal liability shall require proof of a guilty mind or criminal intent, save for strict liability offences expressly designated by statute for the protection of public safety or revenue.

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PART II: CLASSIFICATION OF OFFENCES

3. Offences Against the Crown and State
(1) **Treason:** Whosoever compasses, imagines, devises, or intends the death, deposition, or bodily harm of the Sovereign Margrave, or levies war against the Crown, commits high treason, punishable by the highest penalties of the law.

(2) **Sedition and Subversion:** Publishing seditious libels, conspiring to overthrow the constitutional government by unlawful force, or subverting the sovereign security of Danuvius constitutes a grave indictable offence.

4. Offences Against the Person
(1) Unlawful homicide (encompassing murder and manslaughter), assault, grievous bodily harm, kidnapping, and criminal coercion against any subject or resident are declared felonies of the highest order.

(2) Every individual enjoys a fundamental common law right to bodily integrity, protected by the criminal courts of the Realm.

5. Offences Against Property and Commerce
(1) Theft, robbery, fraud, criminal damage to property, forgery of state or commercial documents, and cyber-crimes targeting the digital infrastructure of Danuvius are punishable offences.

(2) Fraudulent acquisition of citizenship, corporate registry manipulation, or counterfeiting of the Danubian Florin shall be prosecuted with the utmost severity.

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PART III: CRIMINAL PROCEDURE AND PENAL ADMINISTRATION

6. Rights of the Accused and Due Process
(1) Any person arrested or detained on a criminal charge shall be brought before a magistrate of the High Court without undue delay, informed promptly of the specific charges, and granted access to legal counsel.

(2) Trial by jury or before a qualified magistrate, in accordance with Instrument VII, shall be guaranteed in all indictable matters.

7. Penal Administration and Rehabilitation
(1) Punishments imposed by the courts shall be proportional to the gravity of the offence and may include fines, forfeiture of property, community service under the Civil Defence Corps, or custodial sentences served in designated correctional facilities of the Realm.

(2) Cruel, inhuman, or degrading punishments are strictly prohibited under Danubian law.

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PART IV: COMMENCEMENT

8. Commencement

This Act shall take effect immediately upon Royal Assent and signature by the Sovereign in this inaugural year of Our Reign.

Given under Our hand and the Great Seal of the Margraviate of Danuvius, this 4th day of May, 2026, being the first year of Our Reign.

Albreicht I, Ister

Albrecht I

MARGRAVE ALBRECHT I

Sovereign of Danuvius, Head of the House of Ister

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